



CHAPTER xvi.

An Act to regulate the expenditure on capital account and lending of money by the London County Council during the financial period from the first day of April one thousand nine hundred and forty-seven to the thirtieth day of September one thousand nine hundred and forty-eight and for other purposes.

[18th July 1947.]

WHEREAS the borrowing of money by the London County Council (hereinafter referred to as "the Council") for the purposes of expenditure on capital account and of loans to bodies and persons is governed by the London County Council (Finance Consolidation) Act 1912 as amended or extended by subsequent Acts (hereinafter referred to as "the principal Act") and by Acts to be obtained by the Council for regulating such expenditure and loans during the several periods from the first day of April in any year to the thirtieth day of September in the next following year (which periods are in the principal Act and in this Act referred to severally as a "financial period"):

2 & 3 Geo. 5.
c. cv.

And whereas such expenditure and loans as aforesaid are in relation to the financial period ending on the thirtieth day of September one thousand nine hundred and forty-seven regulated by the London County Council (Money) Act 1946:

9 & 10 Geo. 6.
c. xxx.

And whereas it is expedient that the expenditure of the Council on capital account and the lending of money by them during the financial period from the first day of April one thousand nine hundred and forty-seven to the thirtieth day of September one thousand nine hundred and forty-eight (hereinafter referred to as "the financial period 1947-1948") should be regulated as by this Act provided:

And whereas estimates have been prepared by the various committees of the Council of the amounts which may be required for the purposes of expenditure on capital account and of loans during the financial period 1947-1948 in the execution of the powers and duties respectively delegated to those committees and all those estimates have been considered by the finance committee of the Council and submitted by that committee to the Council and the estimates as so submitted have been adopted by the Council:

And whereas the sums estimated to be so required as aforesaid for expenditure on capital account during the financial period 1947-1948 are set out in Part I of the schedule to this Act:

And whereas the sums estimated to be so required as aforesaid for the purpose of loans by the Council during the financial period 1947-1948 are set out in Part II of the said schedule:

1 Edw. 8. &
1 Geo. 6.
c. xlviii.

And whereas the further sums which the Treasury in pursuance of subsection (3) of section 8 (Powers as to expenditure or loans in event of insufficiency of specified amounts) of the London County Council (Money) Act 1937 may authorise the Council to expend on capital account or to lend during the financial period 1947-1948 are set out in Part III of the said schedule:

And whereas the sums specified in the said Parts I II and III of the schedule to this Act are to the extent set out in Part IV of the said schedule sums which the Council were by virtue of the said London County Council (Money) Act 1946 authorised to expend or lend but which were not before the first day of April one thousand nine hundred and forty-seven expended or lent:

26 Geo. 5 &
1 Edw. 8.
c. ciii.

And whereas it is expedient that the provisions of the principal Act and of the London County Council (Money) Act 1936 should be amended as by this Act provided:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short title
and
construction.

1. This Act may be cited as the London County Council (Money) Act 1947 and shall be read and have effect as one with the principal Act.

2. In and for the purposes of this Act—

Interpretation.

“ the Council ” means the London County Council;

“ the principal Act ” means the London County Council (Finance Consolidation) Act 1912 as amended or extended by any subsequent Act;

“ the financial year ” means the period from the first day of April one thousand nine hundred and forty-seven to the thirty-first day of March one thousand nine hundred and forty-eight both dates inclusive;

“ the following six months ” means the period from the first day of April one thousand nine hundred and forty-eight to the thirtieth day of September one thousand nine hundred and forty-eight both dates inclusive;

“ the financial period 1947-1948 ” means the financial year and the following six months; and

“ the schedule ” means the schedule to this Act.

3.—(1) The purposes for which during the financial period 1947-1948 the Council may under the powers of section 4 (Power to expend money on capital account) of the principal Act expend money on capital account shall be the purposes mentioned in the second column of Part I of the schedule.

Expenditure on capital account during financial period 1947-1948.

(2) The sums which during the said period the Council may under the said powers expend on capital account shall as regards the financial year and the following six months respectively be sums which except as by the principal Act otherwise provided shall not exceed those mentioned in the sixth and seventh columns respectively of Part I of the schedule in relation to the said purposes respectively.

4. The sums which during the financial period 1947-1948 the Council may lend under the powers of section 7 (Power to lend money to local authorities and others) of the principal Act and which the bodies and persons mentioned in that section are authorised to borrow from the Council shall as regards the financial year and the following six months respectively be sums which except as by the principal Act otherwise provided shall not exceed those specified in the second and third columns respectively of Part II of the schedule in relation to such bodies and persons respectively.

Amount authorised to be lent during financial period 1947-1948.

5. The sums which the Council may be authorised by the Treasury under the powers of subsection (3) of section 8 (Powers as to expenditure or loans in event of insufficiency of specified amounts) of the London County Council (Money) Act 1937 to expend on capital account or to lend during the

Amount of further expenditure and loans which Treasury may

authorise
in case of
insufficiency.

financial period 1947-1948 in case the amounts specified in Parts I and II of the schedule or any of those amounts are found to be insufficient shall as regards the financial year and the following six months respectively be sums not exceeding in the aggregate the amounts specified in the second and third columns respectively of Part III of the schedule.

Periods for
repayment
of loans to
certain
bodies and
persons.

6. Any money lent by the Council to governors or managers of educational institutions (including special and approved schools) or to committees of school treatment centres or to governors or committees of voluntary hospitals and hostels in pursuance of powers conferred by the principal Act and this Act shall be repaid to the Council within such period or periods not exceeding sixty years from the date or respective dates of lending the same as the Council with the approval of the Treasury may determine.

Amendment
of section 12
of principal
Act.

7. Subsection (3) of section 12 (Consolidated loans fund) of the principal Act shall be read and have effect as if there were excepted from the moneys referred to in paragraph (a) of that subsection all rents or other moneys (other than moneys in the nature of capital) received by the Council from any demise lease or letting of lands rents or property belonging to them.

Amendment of
section 8 of
London
County
Council
(Money) Act
1936.

8. Section 8 (Power to Council to use certain funds for purposes of statutory borrowing powers) of the London County Council (Money) Act 1936 shall be read and construed and shall be deemed always to have had effect as if in subsection (1) thereof for the words "where they are authorised by an annual money Act to expend money on capital account" there were substituted the words "where they are authorised to borrow any money."

Application
of Local
Authorities
Loans Act
1945 &c.
8 & 9 Geo. 6.
c. 18.

9. It shall not be lawful for the Council to exercise for the purposes mentioned in this Act the powers of borrowing conferred by the principal Act otherwise than in compliance with the provisions of the Local Authorities Loans Act 1945 and of any orders for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946.

The SCHEDULE referred to in the foregoing Act.

PART I.

ESTIMATED REQUIREMENTS FROM 1ST APRIL 1947 TO 30TH SEPTEMBER 1948 FOR CAPITAL EXPENDITURE.

Acts for the Purposes of which Money may be expended. (1)	Purposes of Expenditure. (2)	Particulars in Cases in which there was a Parliamentary Estimate of Expenditure.			Estimated Requirement for Year ending 31st March 1948. (6)	Estimated Requirement for Six Months ending 30th September 1948. (7)	
		Total Parliamentary Estimate. (3)	Expenditure to 31st March 1947 (Approximate). (4)	Revised Estimate where necessary. (5)			
1. Metropolis Management Act 1855 and various Acts authorising improvements and works.	Construction widening or improvement of streets for facilitating the passage and traffic between different parts of the administrative county of London and contributions towards cost of such improvements towards cost of local improvements and expenditure upon improvements and works authorised by various Acts for which no provision is made elsewhere.	£ *	£ —	£ —	£ 446,160	£ 48,750	£
2. Weights and Measures Act 1878.	Improvements &c. to weights and measures buildings.	*	—	—	2,500	2,500	
3. Thames Tunnel (Blackwall) Acts 1887 and 1888.	Blackwall Tunnel—ventilation	*	—	—	830	—	
	Carried forward	...	...	...	449,490	51,250	

SCHEDULE—continued.

Acts for the Purposes of which Money may be expended. (1)	Purposes of Expenditure. (2)	Particulars in Cases in which there was a Parliamentary Estimate of Expenditure.			Estimated Requirement for Year ending 31st March 1948. (6)	Estimated Requirement for Six Months ending 30th September 1948. (7)	
		Total Parlia- mentary Estimate. (3)	Expendi- ture to 31st March 1947 (Approximate). (4)	Revised Estimate where necessary. (5)			
	Brought forward ...	£ ...	£ ...	£ ...	£ 449,490	£ 51,250	£
4. Local Government Act 1888 and sundry Acts relating to bridges.	Construction of new Chelsea Bridge ... Reconstruction and widening of Deptford Creek Bridge. Acquisition of property and execution of works in connection with construction of new Wandsworth-bridge. Construction of new Waterloo-bridge ... Newington Sessions House ...	* * * * *	— — — — —	— — — — —	400 74,815 1,640 25,000 2,000	— 12,375 — — —	
5. Local Government Act 1888.	Alterations to mental hospitals and other purposes.	*	—	—	154,000	100,025	
6. Lunacy and Mental Treatment Acts 1890 to 1930.	Additions and alterations to installations provision of equipment and other purposes in connection with accommodation for mental defectives.	*	—	—	23,000	10,000	
7. Mental Deficiency Acts 1913 to 1927.	Execution of works in connection with widening of Cable-street.						
8. London County Council (Tramways and Improvements) Act 1920.		†595,500	310,908	—	4,535	2,470	

9. London County Council (General Powers) Act 1925.	Acquisition of property in connection with the widening of the Strand between George-court and Villiers-street.	...	...	...	...	...	...
10. Poor Law Act 1930 ...	Acquisition of property additions and alterations to residential schools and children's homes mental institutions and social welfare institutions.	*	—	—	361,000	253,525	50,000
11. London County Council (Vauxhall Cross Improvement) Act 1931.	Acquisition of property in connection with street improvements at Vauxhall Cross.	617,000	206,940	294,000	2,000	—	—
12. Children and Young Persons Act 1933.	Acquisition of property additions and alterations to approved schools and remand homes.	*	—	—	8,000	4,000	—
13. London County Council (General Powers) Act 1934.	Acquisition of property and execution of works in connection with Westferry-road to West India Dock-road improvement.	†145,750	21,705	67,000	3,500	3,500	—
14. Housing Acts 1936 to 1944 and other Acts relating to housing.	Acquisition of property erection of dwellings improvements &c. to premises and other purposes. Advances to persons or bodies of persons.	*	—	—	21,520,000	13,800,000	—
15. London and Middlesex (Improvements &c.) Act 1936.	Acquisition of property and execution of works in connection with extension to Cromwell-road.	†1,620,000	588,250	—	140,000	55,000	350,000
16. Public Health (London) Act 1936.	Acquisition of property additions and alterations to hospitals and provision of equipment. Improvements &c. to coroners' courts ...	*	—	—	604,465	206,065	—
17. Public Health (London) Act 1936 and various Acts relating to main drainage.	Sludge storage and digestion reorganisation of main pumping machinery additional purification plant and other purposes.	*	—	—	230,250	66,000	2,500
	Carried forward ...	...	...	...	24,006,595	14,741,710	—

SCHEDULE—continued.

Acts for the Purposes of which Money may be expended. (1)	Purposes of Expenditure. (2)	Particulars in Cases in which there was a Parliamentary Estimate of Expenditure.			Estimated Requirement for Year ending 31st March 1948. (6)	Estimated Requirement for Six Months ending 30th September 1948. (7)	
		Total Parlia- mentary Estimate. (3)	Expendi- ture to 31st March 1947 (Approx- imate). (4)	Revised Estimate where necessary. (5)			
	Brought forward ...	£ ...	£ ...	£ ...	£ 24,006,595	£ 14,741,710	£
18. London County Council (General Powers) Act 1937.	Acquisition of property and execution of works in connection with improvements at Notting Hill-gate and Westminster Bridge-road and the Western-avenue extension between Edgware-road and Marylebone-road.	2,107,000	445,730	—	390,750	115,000	
19. Green Belt (London and Home Counties) Act 1938 and Open Spaces Act 1906 etc.	Contributions towards the green belt scheme contribution towards cost of swimming pool provision of additional open spaces etc.	*	—	—	1,582,470	400,000	
20. London County Council (Tunnel and Im- provements) Act 1938.	Acquisition of property and execution of works for the improvement of the southern approach to Wandsworth-bridge and for the duplication of Blackwall Tunnel.	†3,933,250	164,960	—	87,625	23,500	
21. London County Council (General Powers) Act 1939.	Acquisition of property for the improve- ment of the south bank of the river Thames and at Millbank.	†1,702,000	251,075	—	84,000	925	

	2,246,000	706,250	—	200,000	200,000
22. London County Council (Improvements) Act 1939.	Acquisition of property in connection with the northern approach to Waterloo- bridge.				
23. London Government Act 1939.	Provision of and alterations to accommoda- tion and provision of equipment for supplies department.	—	—	88,980	74,000
24. Education Act 1944.	Acquisition of sites provision and equip- ment of schools and other purposes.	—	—	2,770,000	714,000
25. Town and Country Planning Act 1944.	Acquisition of property execution of works compensation &c.	—	—	500,000	1,000,000
26. Any other Act ...	To provide for possible expenditure for purposes authorised by Parliament (whether before or during the financial period) not included in the foregoing estimates for which it may be desirable that the Council should have spending power.	—	—	1,000,000	500,000
				30,710,420	17,769,135

Carried forward £48,479,555

* The expenditure under these heads is authorised under general powers contained in the Acts named in the first column and therefore no parliamentary estimate is required.

† This figure includes the estimated cost of other purposes authorised by the same Act.

SCHEDULE—continued.

Brought forward £48,479,555

PART II.

AMOUNTS ESTIMATED TO BE REQUIRED FOR LOANS.

Bodies and persons to whom money may be lent. (1)	During year ending 31st March 1948. (2)	During six months ending 30th September 1948. (3)
27. Governors or managers of educational institutions (including special and approved schools) committees of school treatment centres and governors or committees of voluntary hospitals and hostels.	£ 10,000	£ 5,000
28. Sundry persons under the Small Dwellings Acquisition Acts ...	100,000	50,000
Total	†110,000	†55,000

£165,000

† The provision for advances to persons or bodies of persons under the Housing Act 1936 as extended by section 6 of the Building Materials and Housing Act 1945. is included under item 14 of this schedule.

PART III.

EXPENDITURE OR LOANS WHICH MAY BE AUTHORISED BY THE
TREASURY BEYOND AMOUNTS SPECIFIED IN PARTS I AND II
OF THIS SCHEDULE.

Purposes. (1)	During year ending 31st March 1948. (2)	During six months ending 30th September 1948. (3)
29. General enlargement of spending and lending power to provide under Treasury sanction for possible further expenditure for purposes included and possible further loans to bodies and persons mentioned in Parts I and II of this schedule.	£ 2,000,000	£ 1,500,000

£3,500,000

Carried forward £52,144,555

SCHEDULE—continued.

Brought forward £52,144,555

PART IV.

AMOUNTS INCLUDED IN THE FOREGOING PARTS OF THIS SCHEDULE WHICH WERE AUTHORISED BY VIRTUE OF THE LONDON COUNTY COUNCIL (MONEY) ACT 1946 TO BE EXPENDED OR LENT BUT NOT HAVING BEEN EXPENDED OR LENT BEFORE 1ST APRIL 1947 ARE INCLUDED AGAIN IN THIS ACT.

IN ORDER TO ASCERTAIN THE NET AGGREGATE NEW POWERS OF EXPENDING OR LENDING MONEY CONFERRED BY VIRTUE OF THIS ACT IT IS NECESSARY TO DEDUCT THE FOLLOWING SUMS FROM THE SUMS REFERRED TO IN THE FOREGOING PARTS OF THIS SCHEDULE.

Reference to number of item in a foregoing Part of this schedule.	Purposes of expenditure or loan.	Amount (approximate).
1	Metropolis Management Act 1855 and various Acts authorising improvements and works.	£ 298,880
4	Local Government Act 1888 and sundry Acts relating to bridges.	55,095
6	Lunacy and Mental Treatment Acts 1890 to 1930.	9,990
7	Mental Deficiency Acts 1913 to 1927 ...	11,215
8	London County Council (Tramways and Improvements) Act 1920.	3,080
9	London County Council (General Powers) Act 1925.	19,935
10	Poor Law Act 1930	98,250
11	London County Council (Vauxhall Cross Improvement) Act 1931.	1,400
12	Children and Young Persons Act 1933. ...	12,000
13	London County Council (General Powers) Act 1934.	170
14	Housing Acts 1936 to 1944 and other Acts relating to housing.	15,852,240
15	London and Middlesex (Improvements &c.) Act 1936.	47,480
16	Public Health (London) Act 1936	386,930
17	Public Health (London) Act 1936 and various Acts relating to main drainage.	160,500
18	London County Council (General Powers) Act 1937.	248,960
19	Green Belt (London and Home Counties) Act 1938 Open Spaces Act 1906 &c.	301,920
20	London County Council (Tunnel and Improvements) Act 1938.	23,795
21	London County Council (General Powers) Act 1939.	84,925
	Carried forward	17,615,865

SCHEDULE—continued.

Brought forward £52,144,555

Reference to number of item in a foregoing Part of this schedule.	Purposes of expenditure or loan.	Amount (approximate).
	Brought forward	£ 17,615,865
22	London County Council (Improvements) Act 1939.	76,145
23	London Government Act 1939	19,900
24	Education Act 1944	916,481
25	Town and Country Planning Act 1944 ...	750,000
26	Any other Act	1,500,000
27	Loans to governors or managers of educational institutions &c.	1,500
29	General enlargement of spending and lending power under Treasury sanction.	3,500,000
		£24,379,891
		<u>£24,379,891</u>

NET AGGREGATE NEW POWERS OF EXPENDITURE OR LOAN
(FOR THE PURPOSES OF WHICH THE COUNCIL MAY
RAISE MONEY BY BORROWING OR OTHERWISE).

		£	£
For Council	For year ending 31st March 1948.	10,586,954	
	For six months ending 30th September 1948.	17,014,210	
			27,601,164
For loans	For year ending 31st March 1948.	108,500	
	For six months ending 30th September 1948.	55,000	
			163,500
			<u>£27,764,664</u>

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